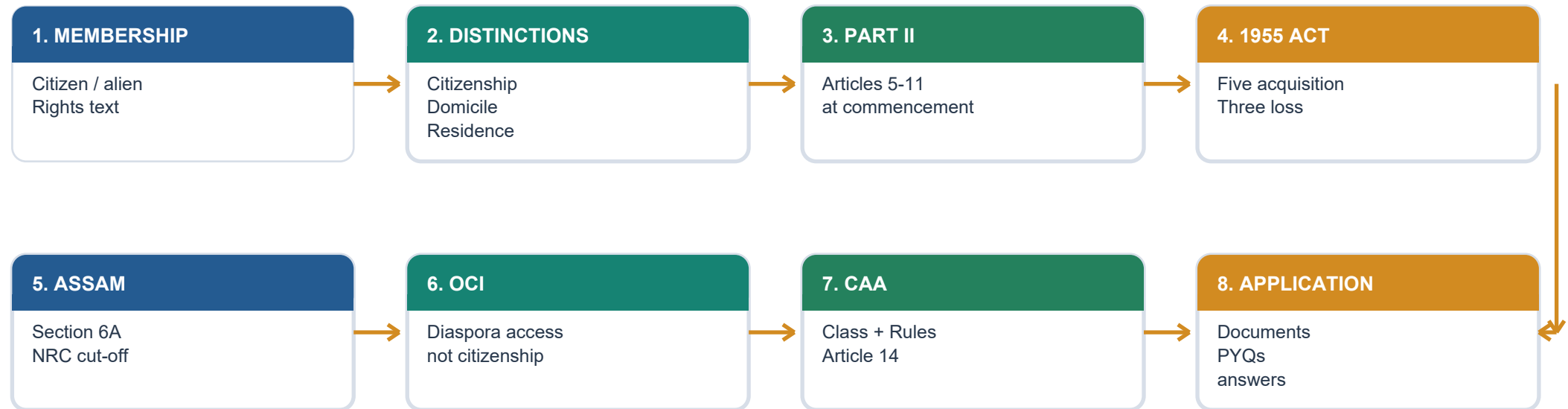


CITIZENSHIP — MASTER LEARNING ROADMAP

POLITY 06 · PAGE 1/12

Membership -> constitutional commencement -> statute -> Assam -> diaspora -> CAA -> answer



ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (OPENING)

Citizenship is the legally recognised membership of the Indian political community: it links allegiance and protection, allocates political voice and selected public offices, and remains principally statutory after the Constitution's commencement settlement.

EXAM OUTPUT

Prelims: exact text, thresholds and category gates. Mains: definition -> law -> tension -> current caution -> qualified verdict.

RIGHTS MAP — TEXT BEFORE TEXTBOOK SHORTHAND

POLITY 06 · PAGE 2/12

Friendly/enemy alien caveat · citizen-specific provisions · vote is statutory

PERSON-BASED

Art 14: any person
Art 20: no person
Art 21: no person
Art 25: all persons
These protections extend beyond citizens.

CITIZEN-SPECIFIC

Art 15: citizen/citizens
Art 16: citizens
Art 19: all citizens
Art 29: section of citizens / no citizen

TEXTUAL CAVEATS

Art 30 says minorities, not citizens.
Art 22(3)(a) excludes enemy aliens from clauses (1)-(2), not every protection in every situation.
Friendly alien does not mean citizen.

VOTING

Statutory right, not Fundamental Right. Citizenship is necessary; age, ordinary residence, enrolment and disqualifications also matter.

HIGH OFFICES

Naturalised/registered citizens are not barred merely by route. The President must be a citizen under Article 58; India has no US-style natural-born condition.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (RIGHTS MAP)

India's rights map follows constitutional text, not a citizen-versus-alien slogan: Articles 14, 20, 21 and 25 protect persons; Articles 15, 16, 19 and 29 are citizen-specific; Article 30 speaks of minorities; and voting is statutory, not a Fundamental Right.

ARTICLES 5-11 — COMMENCEMENT ARCHITECTURE

Learn every Article separately before compressing the scheme



ARTICLE 5 GATE

Domicile is indispensable. The objective connection—birth, parentage or five years' residence—does not replace domicile.

ARTICLE 9 CAUTION

Contextual commencement disqualifier, not the whole modern law. Current termination also rests on Section 9 of the 1955 Act.

CONSTITUTION + STATUTE

Part II founds status; Article 11 enables the 1955 Act; statutory decisions remain reviewable under Articles 14/21.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 5-11)

Articles 5-8 identified citizens at commencement, Article 9 disqualified voluntary foreign citizenship for the specified commencement routes, Article 10 continued status subject to law, and Article 11 empowered Parliament to build the permanent statutory regime.

DATE-THRESHOLD CONTROL — MIGRATION, BIRTH AND DESCENT

POLITY 06 · PAGE 4/12

Three timelines that solve most close-option questions

ARTICLES 6-7

1 Mar 1947: Art 7 Pakistan-migration exclusion begins.
19 Jul 1948: Art 6 divides residence-since-migration from registration + six-month residence.
26 Jan 1950: commencement.
Permit for resettlement/permanent return -> post-19-Jul route.

BIRTH IN INDIA

26 Jan 1950-before 1 Jul 1987: birth suffices, subject to exceptions.
1 Jul 1987-before 3 Dec 2004: either parent citizen.
From 3 Dec 2004: both citizens, or one citizen + other not illegal migrant.

DESCENT ABROAD

Before 10 Dec 1992: father citizen.
From 10 Dec 1992: either parent citizen.
From 3 Dec 2004: consular registration within one year or permission later + foreign-passport undertaking.

REGISTRATION CALCULATION

Seven-year routes usually mean 12 months immediately before application + six aggregate years in the preceding eight. Relationship or ancestry creates eligibility, not automatic citizenship.

NATURALISATION CALCULATION

General rule: 12 immediate months + 11 aggregate years in the preceding 14.
CAA class: aggregate 11 becomes 5; the immediate 12-month limb remains.

DATE TRAP LADDER

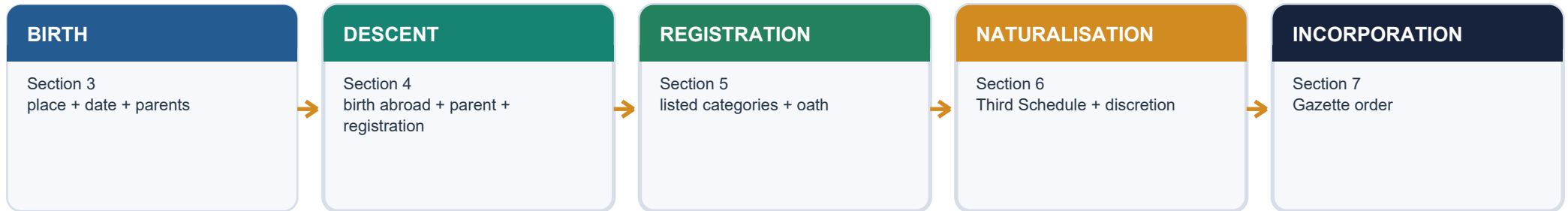
Assam/NRC: midnight 24 March 1971 = entry before 25 March 1971. CAA citizenship: entry on/before 31 December 2014. Immigration Exemption Order 2025: passport/visa exemption for specified persons entering on/before 31 December 2024. These dates answer different legal questions.

CITIZENSHIP ACT, 1955 — ACQUISITION AND LOSS TREE

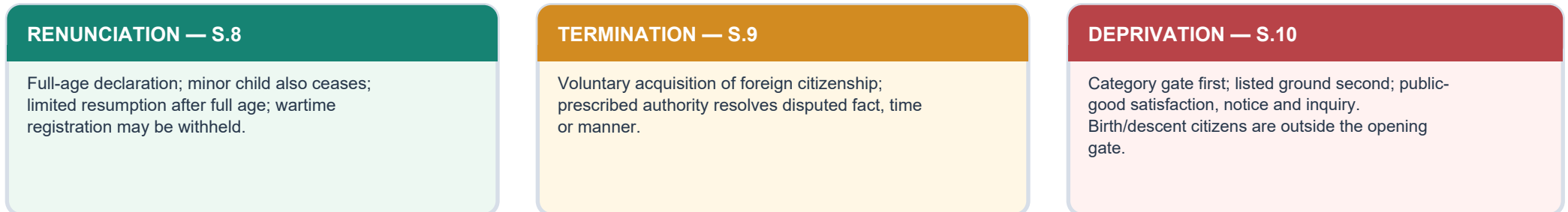
POLITY 06 · PAGE 5/12

Five doors in · three legally distinct exits

ACQUISITION



LOSS



ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ACQUISITION / LOSS)

The Citizenship Act, 1955 creates five acquisition routes—birth, descent, registration, naturalisation and incorporation of territory—and three distinct loss routes—renunciation, termination and category-limited deprivation—each with its own trigger and safeguards.

ONE CITIZENSHIP — DIFFERENTIATED REGIONAL PROTECTION

POLITY 06 · PAGE 6/12

Membership, permanent legal home and factual presence answer different questions

CITIZENSHIP

National legal membership: political voice, selected offices, Indian nationality/passport consequences and citizen-specific rights.

DOMICILE

Permanent legal home supported by residence + intention. Article 5 used domicile in India. Pradeep Jain stresses one Indian domicile, not State citizenship.

RESIDENCE

Factual/ordinary presence: electoral rolls, acquisition periods, admissions, benefits and lawful local preference. Long residence alone is not citizenship.

ARTICLE 16(3)

Parliament may prescribe residence for specified public employment.

ARTICLE 19(5)

Reasonable movement/residence limits may protect Scheduled Tribes.

ARTICLES 371

Customary law, land, local cadre and regional opportunity safeguards.

FORMER 35A

Historical only after 2019; present domicile rules do not create J&K citizenship.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (SINGLE CITIZENSHIP)

India combines one national citizenship and one Indian domicile with constitutionally authorised regional protection; residence preferences, Articles 16(3), 19(5) and 371 safeguards do not create State citizenship.

ASSAM ACCORD, SECTION 6A AND NRC

Historical statutory asymmetry + controlling 4:1 judgment + implementation monitoring

BEFORE 1 JAN 1966

Indian-origin entrants from specified territory who remained ordinarily resident: deemed citizens from 1 January 1966.

1 JAN 1966-BEFORE 25 MAR 1971

Detection + registration; electoral-roll deletion; ten years without voting; then deemed citizenship for all purposes.

ON/AFTER 25 MAR 1971

No Section 6A protection. NRC memory date: midnight 24 March 1971.

MAJORITY — 17 OCT 2024

4:1 validity. Article 11 competence; Assam + 1971 cut-off reasonable; no proved violation of Arts 6, 7, 9, 14, 21, 29, 326 or 355. Implementation deficiencies addressed separately.

SOLE DISSENT

Justice Pardiwala: prospective invalidity because open-ended detection design became manifestly arbitrary; protect past grants.

MONITORING

6 Feb 2025: Union and Assam received six weeks for compliance status reports; no located later merits order changed validity.

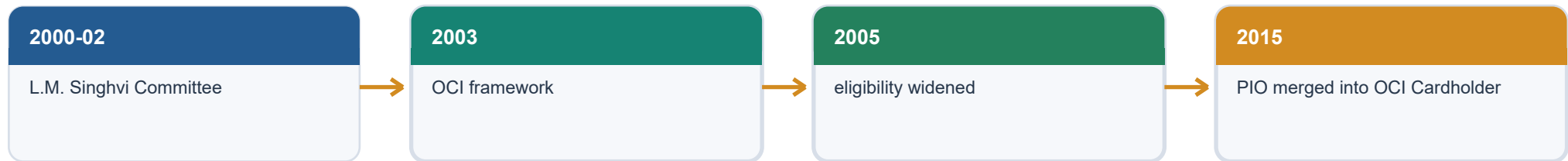
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (SECTION 6A)

Section 6A is an Assam-specific route to Indian citizenship: pre-1966 entrants are deemed citizens, the 1966–before-25-March-1971 stream faces detection, registration and ten years without electoral-roll inclusion, and post-cut-off entrants receive no protection.

OCI / PIO — CALIBRATED DIASPORA ACCESS

POLITY 06 · PAGE 8/12

Singhvi Committee -> 2003 -> 2005 -> 2015; rights by statute/notification



FACILITIES

Lifelong multiple-entry visa; FRRO/FRO exemption with intimations; selected parity in tariffs/fees; NRI parity for listed adoption, education, property and professions.

PERMISSION NEEDED

Research; missionary; Tabligh (religious propagation); mountaineering; journalism; specified diplomatic internships/employment; protected/restricted/prohibited areas.

POLITICAL RESTRICTIONS

No vote, Parliament/State legislature, President/VP, SC/HC judgeship or Article 16 public-employment equality; foreign passport remains.

CANCELLATION

Section 7D: listed fraud, disaffection, enemy assistance, offence, law-violation, sovereignty/security/public-interest and spouse-marriage grounds; reasonable opportunity of hearing.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (OCI)

OCI is calibrated diaspora access for a foreign national—not dual citizenship—because notified mobility and socio-economic facilities coexist with no vote, no Indian passport and no claim to citizen-reserved public office.

CAA 2019 + RULES 2024 — ELIGIBILITY MATRIX

POLITY 06 · PAGE 9/12

Exact statutory class, process, exclusions and the 2025 immigration-law trap

COMMUNITIES

Hindu
Sikh
Buddhist
Jain
Parsi
Christian

COUNTRIES

Afghanistan
Bangladesh
Pakistan

ENTRY DATE

On or before
31 December 2014
for CAA citizenship
facilitation

EXEMPTION

Must fit the specified exemption
framework; eligibility is
cumulative.

SECTION 6B PROCESS

Electronic application -> DLC verification ->
personal appearance/oath -> Empowered Committee
scrutiny -> digital certificate. Grant is not
automatic.

TERRITORIAL EXCLUSIONS

Sixth Schedule tribal areas in Assam, Meghalaya,
Mizoram and Tripura + notified Inner Line areas.
Not the whole Northeast.

NATURALISATION

Aggregate period in preceding 14 years: 11 -> 5
for specified class. Immediate 12 months and other
qualifications continue.

2025 IMMIGRATION CAUTION

31 Dec 2024 in the Exemption Order = passport/visa exemption under new immigration law; it does not replace the CAA citizenship cut-off of 31 Dec 2014.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (CAA DEBATE)

The CAA debate turns on whether a six-community, three-country and 31-December-2014 facilitation is a reasonable humanitarian classification or an under-inclusive religion-coded preference incompatible with Article 14 and secularism.

ACT / RULES

CAA 2019 operative.
Rules notified 11 Mar 2024.
No later citizenship amendment/rule located that changes the scheme.

CERTIFICATES

14 Delhi: 15 May 2024.
WB/Haryana/Uttarakhand: 29 May 2024.
188 Ahmedabad: 18 Aug 2024.
Operation ≠ validity.

CAA LITIGATION

19 Feb 2026: groups + May final-hearing schedule.
20 Mar: material deadline extended.
No located final merits judgment through 21 Aug.

SECTION 6A

4:1 merits holding controls. 6 Feb 2025
implementation-monitoring order. No located
review/later merits order changes validity.

OCI

S.O. 1050(E), 4 Mar 2021 remains latest located
Section 7B notification. No superseding
rights/restrictions notification located.

IMMIGRATION 2025

New regime from 1 Sep 2025; old Acts repealed with
savings. Citizenship Act continues. 2024
immigration exemption date is not CAA citizenship.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (CURRENT STATUS)

As verified on the located official record through 21 August 2026, the 2019 Act and 2024 Rules are operative, the CAA constitutional challenges have no located final judgment, Section 6A remains valid under the 4:1 decision with implementation monitoring, and the 2021 OCI notification remains unsuperseded.

TRAPS + VERIFIED PYQ ROUTES

Objective elimination depends on beneficiary text, dates, categories and proof

PYQ 2018 Q12 — AADHAAR

Statements: Aadhaar as citizenship/domicile proof; deactivation impossible.
Reasoned answer: D, neither.
Provenance: local official Set-C paper; direct local official key unavailable.
Route: identity evidence is not citizenship status.

PYQ 2021 Q89 — DIRECT OWNER

Statements: one citizenship + domicile; only birth citizen may be Head of State; granted citizenship can never be deprived.
Reasoned answer: A, statement 1 only.
Provenance: local official paper; direct local official key unavailable.

ART 30

Minorities, not mechanically citizen-only

ART 9

Contextual commencement disqualifier

BIRTH

Three date periods + exact exceptions

LOSS

R / T / D triggers differ

ASSAM

1971 ≠ CAA 2014 ≠ immigration 2024

OCI

Foreign national, not dual citizen

CAA

Facilitated route, not automatic grant

PROOF

Aadhaar/residence/EPIC not universal certificate

ANSWER SPINES — FROM PROVISION TO QUALIFIED VERDICT

POLITY 06 · PAGE 12/12

Use the law first; add debate and current caution only after the scheme is exact

10 MARKS

Definition/thesis

- > 3-4 exact legal units
- > one named case/notification
- > one qualification
- > direct verdict

15 MARKS

Thesis

- > constitutional scheme
- > statutory mechanism
- > named evidence
- > criticism + reply
- > current caution
- > verdict

20 MARKS

Definition

- > chronology/design
- > legal test
- > multiple dimensions
- > counterargument
- > implementation
- > graded conclusion

CAA SPINE

Exact class -> Art 14
comparator/differentia/nexus/arbitrariness ->
secularism/Assam objections -> humanitarian
defence -> operative + pending.

SINGLE-CITIZENSHIP SPINE

One membership -> Pradeep Jain -> Arts 16(3),
19(5), 371 -> no State citizenship ->
proportional regional protection.

STATUS SPINE

Separate enactment, implementation, procedural
order and final merits judgment. Write 'no later
official disposition located' where the search is
bounded.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (FINAL VERDICT)

Indian citizenship law is constitutionally founded, statutorily administered and judicially reviewable; its legitimacy depends on reconciling equal membership and fraternity with lawful migration control, regional protection and non-arbitrary classification.